

Transfer of Cases - sec. 22-25 (Exhaustive)

- ① Durgesh Sharma v. Jayashree 2008 SC - 22, 24, 25 - more substantive 23 - procedural.
HC has jurisdiction over its own territory & order is incidental on its own jurisⁿ not outside.
will prevail over 23.

→ (25) power of SC overrides (23(3)) power of HC in transfer of cases if 2 courts in 2 diff. HC jurisⁿ.

- ② Mayan H.K. Ho. v. Owners parties vessel M.V. Forum Empressway - 2006 SC.

(25) - transfer if ends of justice. "expedient" = necessary.
Court, 1st examines what is loss to applicant if suit not transf.
- if loss is irreparable - then extent, nature of loss to other party if suit is transferred. Greater harm to which party.
- Burden of convenience.

→ Quesⁿ of fact.

BOC - forum convenience.

→ *Pro domine litis* - Rt. to choose own forum.
Object - Justice.

→ who may apply - (22)(23). earliest app. + before issues settled + notice to other side before making appⁿ mandatory.

→ Pragmatic approach, not a mere material consⁿ - BOC ✓ parties, w, nature of suit & forum convenience.

✱

Doctrine of Forum Conveniens - discourⁿ of courts not to entertain a matter as there exists a more appropriate court of competent jurisⁿ.

India TV Ind. news service v. India Broadcast live

→ can refuse transfer if mala fide appⁿ, several reasons ✓.

✱

→ Effect of transfer - All ancillary & incidental proceedings which may arise out of such suit, appeal etc. would be dealt with & decided by the transferee court.

→ NOT APPEALABLE. REVISION u/s 115 ✓

[no notice to other side, material irregularity, refusal to transfer due to erroneous view of law, failure to exercise jurisⁿ]

→ Manika Gandhi v. Ram Lethmalani 1979 SC - Assurance of fair trial - 1st imperative of justice. Only criteria for transfer. Not hypersensitivity / relative convenience of parties / mini-conveniences.
Must be substantial, compelling, POV of public justice.

Transfer of cases

no appeal
reversion

Sec. 22-25

① Durgesh Sharma v. Jayshree 2008 SC -
22, 24, 25 - more substantive 23 - procedural

will prevail more

HC - jurisⁿ over own territory + order is incidental on
its own jurisⁿ not outside

25 SC power overrides 23(3)

② Mayank HK Hd. v. MV Forum Expressway - 25 - transfer if
ends of J - Expedient = if necessary. Court 1st examines
what is loss to applicant if not transf. - if irreparable -
extent & loss to other party if suit is transferred.
Burden of convenience - pragmatic approach.
Dominus litus - Rt. to choose forum.

③ India TV Ind. news service v. India Broadcast - can
refuse transfer if malafide appⁿ, second reasons.

④ Manika Gandhi v. Ram Jethmalani - fair trial - 1st
imperative of J. Only criteria for transfer.
Not hypersensitivity | relative convenience of parties.
Substantial compelling POV of public J.

⑤ Shah Nawaz Khan v. Nagaland - 2023 - 24 - intra state
transfer where HC common v/Aut. 231. 25 - where HC
v/Aut. 214. constitutional court.

Is the SC the sole repository of power in terms of sec 25
to direct transfer of suit, appeal, proceeding to diff. state.

- "Access to J" has to be real. 25✓ or else imposing
bar on 24 - heavy burden to litigants.

25 substantive part not to be interpreted in pedantic
manner - Spl. power but does not debar HC power v/24.

⑥ NCV Aishwarya v. As Saravana 2022 - socio eco. paradigm -
wife's convenience, consⁿ of both - behavior, social strata,
std. of life etc. Ends of J x.